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LINE 1	22CV407813	Garcia v. DHL Express (USA), Inc. (Class Action)	See Line 1 for tentative ruling.
LINE 2	22CV409235	Jacobs v. Transpak, Inc. (Class Action)	See Line 2 for tentative ruling.
LINE 3	24CV431718	State of California, ex rel. Joshua Leichtberg, M.D. vs CONCENTRA INC. et al	See Line 3 for tentative ruling.
LINE 4	24CV445484	Sandoval-Orozco v. Northwest Landscape Maintenance Company (Class Action)	See Line 4 for tentative ruling.
LINE 5	25CV471132	Jefferson Capital Systems LLC vs Aimee Sanders	VACATED as MOOT per filing of Amended Answer 5/28/26
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Case Name: *Garcia v. DHL Express (USA), Inc.*
Case No.: 22CV407813

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Before the Court is Plaintiff's motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 10, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)